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Lawmakers target Flock cameras with a threat to highway funding

A bipartisan bill would restrict Flock cameras to a handful of public safety uses.

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Credit: Barry Chin/Getty



TEXT SETTINGS

A bipartisan pair of US lawmakers tell WIRED they plan to introduce legislation today that would strip federal funding from states that fail to restrict the use of Flock cameras and other automated license plate readers. The devices, which help police track the location of vehicles tied to crimes, have become the subject of nationwide backlash in recent months over more nefarious uses by officers.

The No FLOCK Act—for Federal License-Plate Observation and Camera Keeping—directs the US secretary of transportation to withhold 10 percent of annual financial support due to states for highways, roads, and bridges if it fails to ban Flock and similar devices for all but five use cases. Congressmen Raja Krishnamoorthi, a Democrat representing Chicago suburbs, and Michael Cloud, a Republican whose Texas district includes Corpus Christi, are cosponsoring the bill.

The legislation says that Flock cameras could be used only for “enforcing toll systems, identifying stolen vehicles, missing or endangered persons, vehicles registered to persons with a warrant for a felony offense, or investigating a vehicle involved in a felony offense.” Notably absent are uses like conducting traffic studies, investigating minor drug crimes, and enforcing parking and speeding rules.

“Our investigation into Flock exposed serious gaps in oversight, and this bipartisan bill would put clear limits in place to prevent abuse while preserving legitimate public safety uses,” Krishnamoorthi said in a statement.

But the bill stops short of banning Flock systems altogether, which has been the number one demand from supporters of a global protest movement against the Atlanta-based company and its competitors. It also doesn’t stop Flock users from broadly sharing license plate tracking data with other government agencies, including immigration authorities.

Flock did not immediately respond to a request for comment on the proposed bill.

If the legislation passes this year, states that fail to comply with it would begin losing out on tens of millions to hundreds of millions of dollars in annual transportation funding starting in October 2028.

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The Department of Transportation calculates the amount of so-called surface transportation funds it gives to states based on factors such as how many roadways they have and how busy they are. Congress has repeatedly threatened taking away the funding to pressure states into taking action on public safety. The tactic helped establish a national minimum drinking age, standard rules for what constitutes driving under the influence, and regulations for billboards alongside highways.

Another bipartisan bill introduced in Congress recently called for banning the use of federal funding to purchase Flock cameras. Flock’s lobbying spending in Washington, DC, has been steady

over the past 18 months, and it recently hired a fifth firm to help with the efforts, according to federal records.

Tech backlash

A number of issues related to emerging technologies, including rogue AI systems, data center construction, and law enforcement abuse of Flock cameras, have become major topics in the upcoming US midterm elections, which are now less than two months away. But it's unclear whether any legislation designed to address voters' concerns will advance through Congress anytime soon, let alone gain the approval of President Donald Trump.

The president expressed support for Flock cameras on Sunday, telling reporters that they help law enforcement authorities. Lawmakers largely agree, but they are frustrated by cases in which police officers have been caught using Flock footage for personal reasons, such as stalking their one-time romantic partners. One report found at least 100 instances of alleged abuse over the past eight years.

"Taxpayers shouldn't be forced to fund the shredding of their own civil liberties or the growth of a surveillance state," Cloud said in a statement. "Flock cameras are enabling mass surveillance of Americans, infringing on the Fourth Amendment."

About 25 states and US territories have laws about automated license plate readers, including mandating transparency about the systems and requiring unnecessary data to be promptly deleted, but few of the measures limit types of uses, according to the New York University School of Law's Policing Project.

The bill is "a first step toward reining in unchecked surveillance," Cloud said, adding, "we can protect public safety without sacrificing the privacy of Americans."

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